

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olufunke Awosogba	Team: Team # 6	CCRB Case #: 200616486	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 12/04/2006 7:45 PM	Location of Incident: § 87(2)(b) and § 87(2)(b) Street	18 Mo. SOL 6/4/2008	Precinct: 46
Date/Time CV Reported Sun, 12/10/2006 12:38 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 12/11/2006 12:38 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Cesar Gomez	26485	941024	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Laurine Williams	14945	940859	046 PCT
2. POM John Souhrada	10208	940759	046 PCT
3. POM George Ramirez	23391	941116	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Cesar Gomez	Abuse: PO Cesar Gomez stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	§ 87(2)(b)
B . POM Cesar Gomez	Discourtesy: PO Cesar Gomez acted rudely toward § 87(2)(b)	§ 87(2)(b)
C . POM Cesar Gomez	Force: PO Cesar Gomez used physical force against § 87(2)(b)	§ 87(2)(b)

Synopsis

On December 4, 2006, twin brothers § 87(2)(b) and § 87(2)(b) were driving in their vehicle when an officer stopped them for driving with a loud muffler (allegation A). During the stop PO Cesar Gomez and PO Souhrada approached § 87(2)(b) on the passenger side and asked him for identification. After examining the identification, PO Gomez flung § 87(2)(b)'s card at him (allegation B). § 87(2)(b) argued with PO Gomez about his behavior, and then PO Gomez told § 87(2)(b) to step out of the vehicle. PO Gomez then allegedly pushed § 87(2)(b) against the car and put his finger in § 87(2)(b)'s face, asking § 87(2)(b) what he was going to do about it (allegation C). § 87(2)(b) told PO Gomez not to touch him, but PO Gomez pushed him a few more times, and then handcuffed him.

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)

On December 11, 2006, the sister of § 87(2)(b) (5'7", 175-pound, § 87(2)(b)-old Hispanic male § 87(2)(b)) whose name is unknown filed this complaint with the CCRB using the call processing system (Enc. 3a-b). § 87(2)(b)'s sister did not witness the incident. On January 5, 2007, § 87(2)(b) was interviewed at the CCRB regarding his encounter with police officers on December 4, 2006 (Enc.4a-c). On December 4, 2006, at approximately 7:45PM, § 87(2)(b) and his brother, § 87(2)(b) were on their way home from work. § 87(2)(b) drove his 1992 or 1995 blue, hatchback, Honda Civic, and the muffler was making a loud noise. § 87(2)(b) and § 87(2)(b) were at a stop sign on § 87(2)(b) and § 87(2)(b) Street in the Bronx (§ 87(2)(b)) when three to four officers pulled them over. PO1 (identified as PO Cesar Gomez and described as 5'7", slim, Hispanic male with curly hair that appeared to be in his mid-twenties) approached their vehicle, asked for § 87(2)(b)'s license and registration. He told § 87(2)(b) that his muffler was loud and asked him about why the license plate was not on the back of his car. § 87(2)(b) stated that there was a sheet with the plate number in the rear window. PO Gomez then told § 87(2)(b) to pull over to the curb since he was in the middle of the street.

PO2 (identified through the investigation as PO John Souhrada) and PO Gomez then approached § 87(2)(b) on the passenger side of the vehicle and asked him for ID. § 87(2)(b) handed PO Souhrada his school ID, and then PO Souhrada walked about eight feet away from the vehicle to PO Gomez. PO Gomez said to PO Souhrada, "We have another one." PO Souhrada replied to PO Gomez, "I don't give a fuck where he goes." § 87(2)(b) overheard their conversation; he told them that what they were saying was not right. PO Gomez flung § 87(2)(b)'s ID in his face and asked him for another ID. § 87(2)(b) angrily confronted PO Gomez about the way he returned his ID card to him, saying that PO Gomez should have returned his ID in the same manner that it was given.

PO Gomez told § 87(2)(b) once to get out of the vehicle. Without argument, § 87(2)(b) immediately exited the vehicle. Once out of the vehicle, PO Gomez pushed § 87(2)(b) on his chest with one hand and put his fingers in § 87(2)(b)'s face, remarking, "What are you going to do about it?" § 87(2)(b) shrugged PO Gomez's hand with his upper abdomen and told PO Gomez not to touch him. PO Gomez continued to push § 87(2)(b) a couple more times, then § 87(2)(b) exclaimed, "Get the fuck off of me!" then pushed PO Gomez. PO Gomez ordered § 87(2)(b) to put his hands behind his back. § 87(2)(b) complied. § 87(2)(b) stated in the interview that as PO Gomez tried to grab his arms, he moved his arm away from PO Gomez because he wanted to put his wallet inside of the car. A back and forth struggle ensued between PO Gomez and § 87(2)(b) but § 87(2)(b) managed to throw his wallet into his vehicle. The officers held § 87(2)(b) as PO Gomez handcuffed him.

Within a minute, over five patrol cars arrived and a patrol van. § 87(2)(b) stated that the officers were on the scene because another incident occurred in the area. § 87(2)(b) was placed in the patrol van and rode to the 46th Precinct with PO Gomez. Before reaching the precinct, officers picked up another male. While

in the van, PO Gomez told PO3 (described as a 6'2" to 6'3" Hispanic male with an athletic build and who appeared to be in his late twenties) that he did not know what he was going to charge § 87(2)(b) with. PO3 said to PO Gomez that since § 87(2)(b) flailed his arms, he should be charged with resisting arrest. § 87(2)(b) was charged § 87(2)(a) 160.50. § 87(2)(b) got PO Gomez's name from an acquaintance, who is an officer at the 46th Precinct, while he was in the holding cell at the precinct. § 87(2)(b) stated that a couple of his friends, § 87(2)(b) and § 87(2)(b) witnessed the incident as they were walking in the area.

Results of Investigation

Attempts to Contact Victim & Witnesses

On January 5, 2007, the undersigned investigator called and scheduled appointments with § 87(2)(b) and § 87(2)(b) for January 18, 2007 and called § 87(2)(b) and scheduled him for January 17, 2007. On January 17, 2007, § 87(2)(b) failed to appear for his appointment and on January 18, 2007, § 87(2)(b) and § 87(2)(b) failed to appear for their appointments. On January 18, 2007, the undersigned investigator mailed missed appointment letters to § 87(2)(b), § 87(2)(b), and § 87(2)(b). On January 22, 2007, the investigator called § 87(2)(b) and rescheduled an appointment for February 6, 2007. That day, the investigator also called § 87(2)(b) and left him a message and called § 87(2)(b) and left a message with his brother, then the investigator mailed final please contact letters to § 87(2)(b) and § 87(2)(b). On February 6, 2007, § 87(2)(b) failed to appear for his appointment, but left a message for the investigator beforehand stating that he will not be able to make his appointment. The investigator called § 87(2)(b) and left a message with his sister, then mailed a missed appointment letter to him. On February 9, 2007, the investigator called § 87(2)(b) and scheduled an appointment with him for February 23, 2007, and then called § 87(2)(b) but was unable to leave a message for him. On February 23, 2007, § 87(2)(b) failed to appear for his appointment and did not notify the investigator. On February 24, 2007, the investigator mailed a missed appointment letter to § 87(2)(b) and then called § 87(2)(b) and rescheduled an appointment with him for March 8, 2007 and called § 87(2)(b) and left a message for him with § 87(2)(b). On March 8, 2007, § 87(2)(b) failed to make his appointment. § 87(2)(b), § 87(2)(g)

PO Cesar Gomez

On March 20, 2007, PO Cesar Gomez (a 5'9", 185-pound, Hispanic male with black hair and brown eyes) was interviewed at the CCRB (enc. 7a-b). On December 4, 2006, PO Gomez worked with PO Laurine Williams from 5:30 PM until 2:05 AM the next day on Precinct Footpost 55-56. He read the following memobook (enc. 6a) entry: at 7:42 PM, he had one person under arrest at § 87(2)(b) Street (and § 87(2)(b)). In the arrest report for § 87(2)(b) (enc. 13a-c), PO Gomez stated that at the time and place of occurrence, § 87(2)(b) was stopped while in the passenger seat of his brother's vehicle. His brother was stopped because of unreasonable noise coming from the vehicle's muffler. As the proper license checks were being conducted, § 87(2)(b) tried to leave the scene. After being told that he couldn't leave until the investigation was finished, he started to use obscene language towards the officers at the scene. § 87(2)(b) started making furtive movements with his hands and after being ordered to stop, he continued. After being ordered to step out of the vehicle and place his hands behind his back since he was being placed under arrest § 87(2)(a) 160.50 he refused and physical force had to be used.

On December 4, 2006, at approximately 7:42 PM, in the vicinity of § 87(2)(b) and § 87(2)(b) Street, PO Gomez and PO Williams stopped § 87(2)(b) in his vehicle because his muffler was making a loud noise. PO Williams stood at the driver's side and asked § 87(2)(b) for his documents. § 87(2)(b) was the only passenger in the vehicle. PO John Souhrada and another foot post officer were present during the incident. PO Souhrada stood with PO Gomez on the passenger's side. Although § 87(2)(b) was cooperative with them, § 87(2)(b) was argumentative. He told the officers that the situation was "bull shit," and exited the vehicle to leave the scene. PO Gomez told § 87(2)(b) that he could not leave the scene until the officers were done issuing § 87(2)(b) a summons. Although § 87(2)(b) verbally contested the officers, he went back into the vehicle. Thereafter, § 87(2)(b) tried twice to exit the vehicle and stated that he did not have time for the officers because he had a test tomorrow. § 87(2)(b) was told three or four times that he could not exit the vehicle. PO Souhrada then asked § 87(2)(b) for ID. § 87(2)(b) got into a verbal dispute with PO Souhrada and told PO

Souhrada, “What the hell is going on? What the fuck you doing? This is bullshit. You don’t have the right to do this. § 87(2)(b)

At this point, PO Gomez decided to arrest § 87(2)(b) because a crowd of about ten people had gathered. PO Gomez asked § 87(2)(b) three or four times to exit the vehicle, but he did not cooperate. PO Gomez then opened § 87(2)(b)’s door and pulled him out of the vehicle by grabbing his arm. PO Gomez stated that PO Souhrada assisted him in removing § 87(2)(b) from the vehicle, but he did not recall where PO Souhrada grabbed § 87(2)(b). § 87(2)(b) resisted by moving his arm away from PO Gomez as PO Gomez and PO Souhrada handcuffed him. PO Gomez stated that § 87(2)(b) was placed against the vehicle then handcuffed; he denied pushing § 87(2)(b) against the vehicle. PO Gomez did not recall § 87(2)(b) complaining of any injury or pain. PO Gomez denied throwing § 87(2)(b)’s ID card at him and using any obscene language towards § 87(2)(b). PO Gomez did not recall any officer using obscene language toward him. PO Gomez stated that PO Williams had no interactions with § 87(2)(b) throughout the incident, and that § 87(2)(b) remained compliant throughout the incident.

PO John Souhrada

On June 21, 2007, PO John Souhrada (a 6’3”, 285-pound white male with black hair and blue/hazel eyes) was interviewed at the CCRB regarding an incident that occurred on December 4, 2006 (enc. 11a-b). PO Souhrada worked in uniform with PO Ramirez on Precinct Footpost 51 -54, from 6:00 PM to 2:00 AM (on December 5, 2006). PO Souhrada kept the following entries in his memobook (enc. 10a-c) regarding the incident: (no time provide) at the time and place of occurrence, the defendant was observed using abusive language towards PO Souhrada, PO Gomez, and PO Ramirez. Defendant made furtive movements. Defendant opened door and did not obey a lawful order given by PO Souhrada. Defendant became more abusive towards officers. Defendant was asked for ID and to step out of the vehicle. Defendant then moved toward officers, making verbal threats and used abusive language. Defendant was then asked to put his hands behind his back, and the defendant refused. PO Souhrada, PO Gomez, and PO Ramirez forcefully put the defendant’s hands behind his back. Defendant resisted arrest.

On December 4, 2006, at 7:45 PM, in the vicinity of § 87(2)(b) and § 87(2)(b) Street, PO Souhrada stopped § 87(2)(b) in his vehicle because he was driving with a loud muffler. § 87(2)(b)’s brother, § 87(2)(b), was also inside of the vehicle. During the car stop, § 87(2)(b) started complaining to the officers that they were taking too long and that he had a paper to do. § 87(2)(b) then attempted to exit the vehicle. PO Souhrada told § 87(2)(b) to get back into the vehicle for safety reasons. A few minutes later, § 87(2)(b) tried a second time to exit the vehicle. Officers Souhrada and Gomez then went to § 87(2)(b)’s side of the vehicle, and asked him to step out of the vehicle. PO Ramirez was already on § 87(2)(b)’s side of the vehicle. When § 87(2)(b) refused to exit the vehicle, PO Souhrada, PO Gomez and PO Ramirez pulled him out of the vehicle then asked him for his ID. PO Souhrada stated that he intended to issue § 87(2)(b) a summons § 87(2)(a) 160.50 at this point. PO Souhrada asked § 87(2)(b) to put his hands behind his back. § 87(2)(b) said to the officers “Fuck you officers. You don’t know shit.” § 87(2)(b) stated that he attended § 87(2)(b). PO Souhrada denied that he or any of the other officers used obscene language towards § 87(2)(b) or that he said “I don’t give a fuck where he goes to school.” When § 87(2)(b) refused to put his hands behind his back, the officers forcefully placed his hands behind his back. When PO Souhrada grabbed § 87(2)(b)’s hand, § 87(2)(b) pulled his hand away. § 87(2)(b) was then issued a summons § 87(2)(a) 160.50. § 87(2)(b) never acted up like § 87(2)(b) and was issued a summons § 87(2)(b).

PO Laurine Williams

On April 4, 2007, PO Laurine Williams (a 5’7”, 135-pound white female with brown hair and brown eyes) was interviewed at the CCRB (enc. 9a-b). PO Williams stated that on December 4, 2006, she worked from 5:30 PM to 2:05 AM the next day with PO Cesar Gomez on Precinct Footpost 55 and 56. PO Williams had no memobook entries regarding the incident (enc. 8a-c).

On December 4, 2006, at approximately 7:45 PM, PO Williams and PO Gomez stopped a vehicle for a loud muffler on the corner of § 87(2)(b) Street and § 87(2)(b) in the Bronx. The driver § 87(2)(b) and

passenger § 87(2)(b) were twin brothers. § 87(2)(b) was loud and belligerent (PO Williams elaborated that § 87(2)(b) was screaming and yelling) towards the officers during the stop. § 87(2)(b) was upset § 87(2)(b) was getting a summons and was asked to calm down. PO Williams stood at the rear of § 87(2)(b)'s vehicle during the vehicle stop. There were other officers in the vicinity, but she could not recall how many. She also could not recall which officer was present during the stop. PO Williams did not recall if she had any interactions with either male.

After § 87(2)(b) continued to scream and yell at the officer, PO Gomez asked § 87(2)(b) for his identification. § 87(2)(b) unlike § 87(2)(b) was calm. PO Williams stated that § 87(2)(b) used obscene language, but did not recall the context of the conversation. Both males provided identification upon request and, at some point, § 87(2)(b) was asked to step out of the vehicle. § 87(2)(b) did not want to cooperate with that request and PO Williams was uncertain if § 87(2)(b) was forced out of the vehicle. While outside of the vehicle, PO Gomez placed § 87(2)(b) in handcuffs. § 87(2)(b) resisted, but PO Williams did not recall how § 87(2)(b) resisted being handcuffed. An RMP was called to the scene and § 87(2)(b) was then transported to the precinct.

Police Documents

The *sprint print out* (enc. 12a-c) shows that at 7:24 PM, an officer assigned to Foot Post 51 in the 46th Precinct arrived at § 87(2)(b) and East § 87(2)(b) Street in the Bronx, and then at 7:40 PM, a person was arrested at the location.

The 46th Precinct *roll call* (enc. 14a-k) from December 4, 2006, tour 3 showed that PO Gomez, tax 941024, and PO Williams were assigned to Foot Post 55/56, and that PO Souhrada and PO Ramirez were assigned to Foot Post 51-54.

According to the *arrest report* (enc. 13a-c) for § 87(2)(b) he was arrested on December 4, 2006 at 7:42 PM and charged § 87(2)(a) 160.50 (§ 87(2)(b))

A copy of the 46th Precinct *command log* (enc. 15a) showed PO Gomez's arrest of § 87(2)(b)

Civilian's Criminal Conviction History (enc. 17a-f)

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian's CCRB History (enc. 2a)

This is § 87(2)(b)'s first CCRB complaint.

Officer's CCRB History (enc. 1a-b)

PO Souhrada and PO Gomez have no prior CCRB complaints.

Conclusions and Recommendations

Officer Identification

All of the officers confirmed their involvement in this incident during their CCRB interviews. PO Gomez's identity as the subject officer is not in question as he confirmed making the initial observation and vehicle stop as well as physically interacting with § 87(2)(b) at the scene.

Undisputed Facts

Officers stopped § 87(2)(b) because his vehicle's muffler was noisy. During the stop PO Souhrada asked § 87(2)(b) for his identification, which § 87(2)(b) provided to him. Thereafter, PO Gomez asked § 87(2)(b) to step out of the vehicle. While § 87(2)(b) stood outside of the vehicle, PO Gomez arrested him.

Disputed Issues

§ 87(2)(b), § 87(2)(g)

Assessment of Evidence

§ 87(2)(b), § 87(2)(g)

PO Souhrada asked § 87(2)(b) for his ID and to step out of his vehicle because of his abusive language towards the officers, which PO Souhrada detailed in his memo book. At this point, PO Souhrada intended to issue a summons to § 87(2)(b) § 87(2)(a) 160.50

§ 87(2)(g)

Although § 87(2)(b) stated that he exited the vehicle on his own accord, PO Gomez stated that he pulled § 87(2)(b) out of the vehicle, and then handcuffed him with help from PO Souhrada. Although both officers admitted to using force against § 87(2)(b) PO Gomez initiated the act of pulling § 87(2)(b) out of the vehicle after § 87(2)(b) allegedly follow PO Gomez's order to exit the vehicle. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) admitted that he tried to put his wallet in the car while the officers were trying to handcuff him. § 87(2)(b), § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b), § 87(2)(g)

Allegation A: PO Cesar Gomez stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Both of the officers and the civilians agreed that the vehicle's muffler was too loud, and it is not disputed that this violation led to the vehicle stop. § 87(2)(g)

Allegation B: PO Cesar Gomez acted rudely toward § 87(2)(b)

Allegation C: PO Cesar Gomez used physical force against § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: